

26TRCV00735 26TRCV00735

County: los-angeles

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Case Number: 26TRCV00735 Hearing Date: July 10, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

DONNETTE

MCFARLAND,

Plaintiff,

Case No.:

26TRCV00735

vs.

[Tentative]

RULING

USMAN

KHALID, et al.,

Defendants.

Hearing

Date: July 10,
2026

Moving Parties: Defendants Usman Khalid
and Sana Khalid

Responding

Party: Plaintiff Donnette McFarland

(1)

Demurrer to Complaint

(2)

Motion to Strike Portions of Complaint

The Court considered the moving, opposition, and reply
papers.

RULING

See
order below.

BACKGROUND

On March 3, 2026, plaintiff Donnette McFarland filed a
complaint against Usman Khalid and Sana Khalid for (1) statutory breach of
warranty of habitability, (2) tortious breach of implied warranty of
habitability, (3) negligence, (4) breach of contract, (5) nuisance, (6) breach
of covenant of quiet enjoyment, (7) breach of the implied covenant of good
faith and fair dealing, (8) violation of Civil Code §1942.4, (9) violation of
Civil Code §1942.5, (10) violation of Civil Code §1950.5, and (11) constructive
eviction.

LEGAL

AUTHORITY

Demurrer

When

considering demurrers, courts read the allegations liberally and in context. *Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal. App. 4th 1216, 1228. "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." *SKF Farms v. Superior Court* (1984) 153 Cal. App. 3d 902, 905. "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 747. Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." *Gressley v. Williams* (1961) 193 Cal. App. 2d 636, 643-44.

Strike

"The

court may, upon a motion . . . , or at any time in its discretion, and upon terms it deems proper: (a) Strike any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." CCP §436(b).

CCP §431.10 states:

"(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An

immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense. (2)

An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense. (3) A

demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An

'immaterial allegation' means 'irrelevant matter' as that term is used in Section 436."

The

grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP §437.

DISCUSSION

Demurrer

Defendants

demur to the eighth and ninth causes of action in the complaint on the ground they fail to state sufficient facts to constitute a cause of action.

The

complaint alleges that plaintiff moved into the property at 3768 Redondo Beach, #A, Torrance on August 1, 2022, and paid a rental amount of \$2650.. Complaint, ¶¶1, 19, 20. In June 2024, plaintiff started to notice

water intrusion and mold present at the property. Id., ¶21.

Plaintiff identified other substandard unsafe/dangerous issues at the property, including plumbing; damaged, cracked, or deteriorated walls/ceilings; sewage water within the property; unpermitted electrical wiring, bathrooms; improper water heater ventilation; inadequate heating; unpermitted dwelling; missing/broken mailbox; inadequate security/locks; vermin. Id., ¶22.

Plaintiff provided written notice to defendants on June 25, 2024. Id., ¶24.

Plaintiff continuously notified defendant of the issues. Id., ¶25.

Said issues have substantially interfered with the quiet enjoyment and peace of mind of plaintiff. Id., ¶26. Defendants have failed and/or refused to repair said issues. Id., ¶27. In spite of plaintiff's pleas, the issues continued to intensify over time. Id., ¶33. Plaintiff reported said issues to the City of Torrance Community Development of multiple health code violations. Id., ¶34.

Defendants were notified by the City of the health code violations. Id., ¶35.

On January 9, 2026, plaintiff vacated the property due to the failure of defendants to adequately repair the issues.

Id., ¶38. Defendants received a

\$3000 security deposit for the property, which they failed to do an accounting and/or return the deposit to plaintiff.

Id., ¶¶40-41.

Eighth cause of action for
violation of Civil Code §1942.4

Under

Civil Code §1942.4, "(a) A landlord of a dwelling may not demand rent, collect rent, issue a notice of a rent increase, or issue a three-day notice to pay rent or quit pursuant to subdivision (2) of Section 1161 of the Code of Civil Procedure, if all of the following conditions exist prior to the landlord's demand or notice:

(1)

The dwelling substantially lacks any of the affirmative standard characteristics listed in Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling.

(2) A

public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions.

(3)

The conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause. For purposes of this subdivision, service shall be complete at the time of deposit in the United States mail.

(4)

The conditions were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2."

The

complaint alleges that the property substantially lacked the affirmative standard characteristics listed in Health & Safety Code §17920.3. Complaint, ¶116. On December 19, 2025, a public officer or

employee from the City of Torrance Dept. of Community Development who is responsible for the enforcement of any housing law, after inspecting the premises, has notified defendants in writing of his or her obligations to abate the nuisance or repair the substandard conditions. Id., ¶117.

The conditions have existed or have not been abated thirty-five days beyond the date of service of the notice and the delay is without good cause. Id., ¶118. The conditions were not caused by an act or omission of plaintiff in violation of sections 1929 or 1941.2. Id., ¶119.

Said conditions in the notice are still present at the property at the time of filing of the complaint. Id., ¶120.

Defendants

argue that because plaintiff vacated the property twenty-one days after the alleged notice on December 19, 2025, she was no longer a tenant when the notice period expired and therefore lacked the contractual and statutory relationship with defendant to invoke section 1942.4.

Further, defendants contend, given that plaintiff vacated the premises two weeks before the period ended, plaintiff does not know whether the conditions were abated.

In

opposition, plaintiff argues that the allegations are sufficient and that the code section does not require that the tenant remain in occupancy through the 35-day period.

The

Court finds that the allegations are insufficient to meet the elements. The complaint does not allege that landlord defendants demanded rent, collected rent, issued a notice of rent increase, or issued a three-day notice to pay rent or quit, which would have had to occur after the 35-day period. Rather, plaintiff alleges that she vacated the premises before the 35-day period expired, thus terminating the landlord/tenant relationship.

The

demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Ninth cause of action for
violation of Civil Code §1942.5

The

complaint alleges that Civil Code §1942.5 provides that a landlord may not “retaliate against the lessee because of the exercise by the lessee of his or her rights under this chapter or because of his complaint to an appropriate agency as to tenantability of a dwelling.” Specifically, a landlord may not “recover possession . . . cause the lessee to quit involuntarily, or decrease any services within 180 days” of specified protected activity by the tenant, including without limitation an “oral complaint to the lessor regarding tenantability.” See Civil Code § 1942.5(a)(1)-(3).

Complaint, ¶125. Section 1942.5

further provides, “Notwithstanding subdivision (a), it is unlawful for a lessor to increase rent, decrease services, cause a lessee to quit involuntarily, bring an action to recover possession, or threaten to do any of those acts, for the purpose of retaliating against the lessee because he or she . . . has lawfully and peaceably exercised any rights under the law.” Civil Code §1942.5(d). Plaintiff made oral complaints to defendants

regarding habitability, communicated with a governmental agency or agencies regarding the same, and/or otherwise peaceably exercised her legal rights in connection with her tenancy at the property.

Id., ¶126. Defendants retaliated

against plaintiff for their legally protected actions, including but not limited to by decreasing the services provided, attempting to decrease the services provided, attempting to cause plaintiff to quit the premises involuntarily, harassing and/or threatening plaintiff, and on information and belief other and further retaliatory acts. Defendants’ retaliatory acts include, without limitation, the following: (1)

attempting to evict plaintiff in retaliation for plaintiff’s lawful exercise of their “repair and deduct” remedy, in addition to other and further retaliatory acts. Id., ¶127. Defendants, in taking these actions, were motivated by a desire to retaliate against plaintiff for complaining to defendants about habitability issues, for communicating with a governmental agency or agencies regarding the same, and/or for otherwise peaceably exercising their legal rights in connection with her tenancy at the subject property. Id., ¶128.

Defendants

argue that a tenant is not entitled to repair and deduct unless notice is provided to the landlord, and that plaintiff pleads no such notice, and therefore plaintiff was in default, rendering the protections under section 1942.5 unavailable. Further, defendants contend, plaintiff’s allegation of “other and further retaliatory acts” is

boilerplate and does not support an inference that defendants retaliated against her.

In

opposition, plaintiff argues that the allegations are sufficient, including that plaintiff provided written notice of the habitability issues to defendants on June 25, 2024 (para. 24) and continuously notified defendants thereafter. Plaintiff also asserts that she alleges that she paid rent for each month she lived at the property and refutes defendants' assertion that plaintiff was in default.

Moreover, plaintiff contends, being caused to quit involuntarily is expressly listed as a prohibited retaliatory act.

The

Court finds that the allegations are sufficient to meet the elements for retaliation. Plaintiff alleges that defendant retaliated against her by attempting to evict her after the "lawful exercise of their 'repair and deduct' remedy."

Complaint, ¶127. The Court must accept as true that plaintiff followed the proper procedure for doing so, as alleged in the complaint.

The

demurrer is OVERRULED.

Motion to Strike

Defendants

request that the Court strike para. 10 where it states, "punitive damages." The Court notes that para. 10 does not reference "punitive damages." Defendants

also request that the Court strike paras. 15 (conspiracy allegations), 30 ("conscious disregard for the safety"), 46-48 (punitive damages), 61 [under 1st cause of action], 72 [under 2nd cause of action], 87 [under 3rd cause of action], 104 [under 5th cause of action], 123 [under 8th cause of action], 132 [under 9th cause of action], 148 [under 11th cause of action] as to punitive damages, and prayer for relief at items 2 (consequential damages), 3 (general non-economic damages and loss of earnings, 5 (statutory damages under Civil Code §1942.4), 7 (statutory damages under Civil Code §1942.5), 8 (punitive damages), and 10 (attorney's fees under CCP §1942.4).

Defendant

also notes paras. 39-42 as to “unsupported allegations” as to IIED but there is no IIED cause of action and those sections are as to a security deposit.

Punitive
damages

Civil Code §3294 authorizes the recovery of punitive damages in non-contract cases where “the defendant has been guilty of oppression, fraud, or malice”

The Court in *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 894-95, found that “[s]omething more than the mere commission of a tort is always required for punitive damages.

There must be circumstances of aggravation or outrage, such as spite or ‘malice,’ or a fraudulent or evil motive on the part of the defendant, or such a conscious and deliberate disregard of the interests of others that his conduct may be called willful or wanton.”

“‘Malice’

means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Civil Code §3294(c)(1).

As the

Court noted in *College Hospital v. Superior Court* (1994) 8 Cal.4th 704, 713, Section 3294 was amended in 1987 to require that, where malice is based on a defendant’s conscious disregard of a plaintiff’s rights, the conduct must be both despicable and willful. The Court in *College Hospital* held further that “despicable conduct refers to circumstances that are base, vile, or contemptible.” *Id.* at 725 (citation omitted).

A

claim for punitive damages may not be based on conclusory allegations of oppression, fraud or malice, but instead must be based on factual allegations which support such a conclusion. See *Smith v. Superior Court* (1992) 10 Cal. App. 4th 1033, 1041-42 (Court of Appeal issued a peremptory writ directing trial court to issue order striking plaintiff’s prayer for punitive damages because “[t]he sole basis for seeking punitive damages are . . . conclusory allegations” which were “devoid of any factual assertions supporting a conclusion [defendants] acted with

oppression, fraud, or malice”).

A

tenant may state a cause of action in tort against his landlord for damages resulting from a breach of the implied warranty of habitability.” *Stoiber v. Honeychuck* (1980) 101 Cal. App. 3d 903, 918-19; see also *Smith v. David* (1981) 120 Cal. App. 3d 101, 112 n.3 (a tenant “may seek general and punitive damages for . . . breach of warranty [of habitability]”). The court in *Stoiber* found that plaintiff stated sufficient facts to support exemplary damages when she “alleged that defendant had actual knowledge of defective conditions in the premises including leaking sewage, deteriorated flooring, falling ceiling, leaking roof, broken windows, and other unsafe and dangerous conditions . . . [and] alleged defendants ‘In maintaining said nuisance, . . . acted with full knowledge of the consequences thereof and the damage being caused to plaintiff, and their conduct was willful, oppressive and malicious.’” *Stoiber*, *supra*, at 920 (citation omitted).

Defendants argue that the allegations are insufficient to support a claim for punitive damages.

Rather, defendants contend, the complaint alleges ongoing maintenance issues and disagreements regarding remediation efforts.

In opposition, plaintiff argues that the allegations are sufficient.

The Court

finds that the complaint contains sufficient allegations to support malice.

Other damages

In light of the ruling on the demurrer, the Court strikes statutory damages at prayer at 5.

As for

compensatory damages and loss of wages, profits, or earning capacity, plaintiff has alleged causes of action for negligence, nuisance, and other causes of action wherein she alleges that she incurred injuries. Plaintiff is not required to plead evidentiary facts.

Conspiracy allegations

Defendants

do not address other than in the notice.

The

Court finds that there is no ground to strike them.

The

motion is thus GRANTED IN PART.

ORDER

The

demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the eighth cause of action
and OVERRULED as to the ninth cause of action.

The

motion to strike is GRANTED IN PART. The
Court strikes the prayer at 5.

Defendants

shall file an answer within 20 days.

Defendants are ordered to give notice of ruling.